IT is hereby notified that the Honourable Vice President responsible for Procurement, in consultation with the Minister of Finance and Economic Development, in terms of section 101 of the Public Procurement and Disposal of Public Assets Act [*Chapter 22:23*] and after consulting with the Procurement Regulatory Authority of Zimbabwe, has made the following regulations:—

1. These regulations may be cited as the Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2022 (No. 4).

2. The Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2018, published in Statutory Instrument 5 of 2018 (hereinafter referred to as the "principal regulations"), are amended by the repeal of the Third Schedule and substitution with the following—

"THIRD SCHEDULE (*Sections 44 and 93*)

SECURITY AND FEES FOR CHALLENGES TO PROCUREMENT PROCEEDINGS

Description	*Fee* (USD)
1. Application to challenge contract award below US$10 000	500,00
2. Application to challenge contract award from US$10 000 and below US$50 000	1 000,00
3. Application to challenge contract award from US$50 000 and below US$100 000	2 000,00
4. Application to challenge contract award from US$100 000 and below US$500 000	5 000,00
5. Application to challenge contract award from US$500 000 and below US$1 million	10 000,00
6. Application to challenge contract award from US$1 million and below US$2 million	15 000,00
7. Application to challenge contract award from US$2 million and below US$5 million	25 000,00

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Description	*Fee* (USD)
8. Application to challenge contract award from US$5 million and below US$15 million	50 000,00
9. Application to challenge contract award from US$15 million and below US$30 million	75 000,00
10. Application to challenge contract award from US$30 million and below US$50 million	100 000,00
11. Application to challenge contract award from US$50 million and below US$100 million	150 000,00
12. Application to challenge contract award from US$100 million and below US$250 million	200 000,00
13. Application to challenge contract award from US$250 million and below US$500 million	250 000,00
14. Application to challenge contract award from and above US$500 million	500 000,00".

3. The principal regulations are amended by the repeal of the Fifth Schedule and substitution with the following—

"FIFTH SCHEDULE (*Section 92*)

FEES

PART I

APPLICATION FOR EXEMPTION IN TERMS OF SECTION 3(7) OF ACT

Description	*Fee* (USD)
1. Application and renewal of exemption of procurement of procurement of trading stock per class of	2 500,00
2. Application for exemption of procurement of a strategic nature by procuring entities operating in competitive markets	2 500,00

PART II

APPLICATION TO CONDUCT PROCUREMENT IN TERMS OF SECTION 15 OF ACT

Description	*Fee* (USD)
1. Application and renewal of authority to conduct procurement under Class C procuring entity:	1 000,00
2. Application and renewal of authority to conduct procurement under Class B procuring entity:	1 500,00
3. Application and renewal of authority to conduct procurement under Class A procuring entity:	2 000,00

PART III

REGISTRATION OF BIDDERS IN TERMS OF SECTION 6(1)(I) OF ACT

Description	*Fee* (USD)
1. Annual Registration and renewal of registration of Zimbabwean (domestic) bidders	120,00
2. Quarterly Registration and renewal of registration of Zimbabwean (domestic) bidders	30,00*
3. Registration and renewal of registration of international bidders:	850,00

(*Quarterly payments are done as part payment to the Annual Registration and renewal of registration)

PART IV

ADMINISTRATION FEES PAYABLE BY BIDDERS FOR BIDS SUBJECT TO REVIEW IN TERMS OF SECTION 54 OF ACT

Description	*Fee* (USD)
1. Administration fees for domestic competitive tenders for each bid for goods, non-consultancy and consultancy services	350,00
2. Administration fees for domestic competitive tenders for each bids for construction works	400,00
3. Administration fees for international competitive tenders for each bid for goods, non-consultancy and consultancy services	400,00
4. Administration fees for international competitive tenders for each bid for construction works	500,00

PART V

ADMINISTRATION FEES PAYABLE BY BIDDERS FOR BID SECURITY ESTABLISHED BY THE AUTHORITY IN TERMS OF SECTION 44 OF ACT

Description for domestic bidders (*Ninety Day Validity with an option of fifty (50) per centum establishment fees on extension of thirty (30) days)*	*Fee* (US$)
1. Establishment fees for bid security below US$2 000.00: . . .	200,00
2. Establishment fees from US$2 000,00 and below US$5 000,00:	350,00
3. Establishment fees for bid security from US$5 000.00 and below US$10 000,00:	500,00
4. Establishment fees for bid security from US$10 000.00 and below US$15 000,00:	750,00
5. Establishment fees for bid security from US$15 000.00 and below US$20 000,00:	1 000,00
6. Establishment fees for bid security from US$20 000.00 and below US$30 000,00:	1 500,00
7. Establishment fees for bid security from US$30 000.00:	5% of Bid Security

Description for domestic bidders (*Sixty Day Validity with an option of fifty* (*50*) *per centum establishment fees on extension of thirty* (*30*) *days*)	*Fee* (US$)
1. Establishment fees for bid security below US$2 000,00: . . .	150,00
2. Establishment fees from US$2 000,00 and below US$5 000.00:	250,00
3. Establishment fees for bid security from US$5 000.00 and below US$10 000,00:	350,00
4. Establishment fees for bid security from US$10 000,00 and below US$15 000,00:	500,00
5. Establishment fees for bid security from US$15 000,00 and below US$20 000,00:	750,00
6. Establishment fees for bid security from US$20 000,00 and below US$30 000,00:	1 000,00
7. Establishment fees for bid security from US$30 000.00:	4% of Bid Security

Description for domestic bidders (*Thirty Day Validity with an option of fifty* (*50*) *per centum establishment fees on extension of thirty* (*30*) *days*)	*Fee* (US$)
1. Establishment fees for bid security below US$2 000.00:	130,00
2. Establishment fees from US$2 000.00 and below US$5 000,00:	175,00
3. Establishment fees for bid security from US$5 000,00 and below US$10 000,00:	250,00
4. Establishment fees for bid security from US$10 000,00 and below US$15 000,00:	375,00
5. Establishment fees for bid security from US$15 000,00 and below US$20 000,00:	500,00
6. Establishment fees for bid security from US$20 000,00 and below US$30 000,00:	750,00
7. Establishment fees for bid security from US$30 000,00:	3.5% of Bid Security

Description Foreign Bidders (*Ninety Day Validity Applicable to international Bidders)*	*Fee* (US$)
1. Establishment fees for bid security below US$5 000.00:	350.00
2. Establishment fees from US$5 000.00 and below US$10 000.00:	500.00
3. Establishment fees for bid security from US$10 000.00 and below US$20 000.00:	1 000.00
4. Establishment fees for bid security from US$20 000.00 and below US$50 000.00:	2 000.00
5. Establishment fees for bid security from US$50 000.00 and below US$100 000.00:	4 000.00
6. Establishment fees for bid security from US$100 000.00 and below US$200 000.00:	7 500.00
7. Establishment fees for bid security from US$200 000.00	5% of Bid Security

PART VI

ANNUAL ADMINISTRATION FEES PAYABLE BY CONTRACTORS IN TERMS OF PART XI OF ACT

Domestic Bids and Description for Domestic Bidders	*Fee* (USD)
1. Contract value from $10 000 and below $20 000	2.00% up to a maximum of 400
2. Contract value from $20 000 and below $50 000	1.50% up to a maximum of 750
3. Contract value from $50 000 and below $500 000	1.00% up to a maximum of 5 000
4. Contract value from $500 000 and below $1 000 000	0.70% up to a maximum of 7 000
5. Contract value from $1 000 000 and below $5 000 000	0.50% up to a maximum of 15 000
6. Contract value from $5 000 000	20 000.”

Direct Procurement Bids Description for International Bidders	*Fee* (USD)
1. Contract value from US$ 20 000.00 and below US$2.5 million:	1.00% of Contract
2. Contract value from US$2.5 million and above	25 000

International Bids Description	*Fee for Foreign Bidders*
1. Contract value from $20 000 and below $200 000	600,00
2. Contract value from US$200 000 and below US$1 million	1 000,00
3. Contract value from US$1 million and below US$2.5 million	5 000,00
4. Contract value from US$2.5 million and below US$5 million	15 000,00
5. Contract value from US$5 million and below US$10 million	20 000,00
6. Contract value from US$10 million and below US$20 million	25 000,00

Direct Procurement Bids Description for International Bidders	*Fee* (USD)
7. Contract value from US$20 million and below US$50 million	45 000,00
8. Contract value from US$50 million and below US$100 million	60 000,00
9. Contract value from US$100 million and below US$200 million	9 0 000,00
10. Contract value from US$200 million and below US$500 million	120 000,00
11. Contract value from US$500 million and below US$700 million	150 000,00
12. Contract value from US$700 million	180 000,00

PART VII

ADMINISTRATION FEES ON REFUND REQUESTS ON NON-REFUNDABLE MISCELLANEOUS DEPOSITS

Description	*Domestic Bidders*	*Foreign Bidders*
Sundry deposits and refund requests on overpayments, non-refundable fee account deposits	(ZWL/US$)	(US$)
Handling fees on refund requests for overpayments and non-refundable account deposits	5.0%	10.0%

PART VIII

FEES PAYABLE FOR CONFERENCING/PRESENTATIONS

Description	*Fee* (US$)
1. Administration fees for Level 1:	500,00
2. Administration fees for Level 2:	400,00
3. Administration fees for Level 3:	300,00
4. Administration fees for Level 5:	200,00

PART IX

ADMINISTRATION FEES PAYABLE FOR DOCUMENT SEARCH AND RETRIEVALS

Description	*Fee* (US$)
1. Administration fees for a single file search & retrieval: . .	60,00
2.Administration fees for multiple files search and retrieval (fee per file):	90,00.".

*Note: Fees charged in terms of these regulations are payable in ZWL at the Interbank Exchange Rate of the day for domestic bidders."